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CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO EXPUNGE LIS PENDENS BY JONATHAN POLAK, AN INDIVIDUAL, REBECCA POLAK, AN INDIVIDUAL

Tentative Ruling: Denied.

Plaintiff to provide notice pursuant to CCP 1019.5.

This is a breach of contract and mechanics lien case. On 8/1/2025, KG Mullen, Inc. ("Plaintiff") filed its operative second amended complaint ("SAC") against Isabella Fawaz and Moet Fawaz ("Fawaz Defendants") as well as moving defendants Rebecca Polak and Jonathan Polak ("Polak Defendants"). The SAC asserts the following causes of action: (1) breach of contract (against Fawaz Defendants only); (2) foreclosure of mechanic's lien (against all Defendants); (3) quantum meruit and quantum valebant (against all Defendants); (4) account stated (against Fawaz Defendants only); (5) open book account (against Fawaz Defendants only); (6) unjust enrichment (against Polak Defendants only).

The SAC states the Fawaz Defendants hired Plaintiff (a construction and development company) to provide labor, materials, and constructions services to improve the property owned by the Fawaz Defendants, located at 77690 Robin Road, Palm Desert, California. (SAC, ¶¶ 9-10.) Plaintiff alleges it performed all contractual obligations but upon submitting the final invoice for payment, the Fawaz Defendants did not pay. (*Id.* at ¶ 14.) On 12/23/2024, the Fawaz Defendants transferred title to the Polak Defendants. (*Id.* at ¶ 20.) Plaintiff filed a mechanic's lien on 12/17/2024 as a result of the above-mentioned nonpayment.

Now, the Polak Defendants move to expunge the mechanic's lien. The motion argues that Plaintiff ceased "all" work on the project by September 2023 but Plaintiff did not record its mechanic's lien until 12/17/2024, well past the deadline. The Polak Defendant thus argue the mechanic's lien is ineffective and unenforceable. In the alternative, the Polak Defendants request Plaintiff be required to post an undertaking.

In opposition, Plaintiff argues they continued working on the project well past the final billing date. Plaintiff argues the alternative undertaking request seeks a grossly overstated amount improperly based on the total value of the property.

In reply, the Polak Defendants argue Plaintiff's follow up work was minor and that Plaintiff otherwise fails to show a probable validity of success.

Request for Judicial Notice (RJN)

As a preliminary matter, the Polak Defendants seek judicial notice of the 12/23/2024 grant deed, the 12/17/2024 mechanic's lien, and the SAC. GRANTED (Evid. Code Section 452.)

Motion to Expunge Lis Pendens

“Article XIV, section 3, of the California Constitution provides that ‘[m]echanics, persons furnishing materials, artisans, and laborers of every class, shall have a lien upon the property upon which they have bestowed labor or furnished material for the value of such labor done and material furnished; and the Legislature shall provide, by law, for the speedy and efficient enforcement of such liens.’” (*Lambert v. Superior Court* (1991) 228 Cal.App.3d 383, 385 (*Lambert*).) The Mechanics lien statutes are remedial legislation which are to be liberally construed for protection of laborers and materialmen. (*Koudmani v. Ogle Enterprises, Inc.* (1996) 47 Cal.App.4th 1650, 1654.) Doubts concerning the meaning of the mechanics’ lien statutes are to be resolved in favor of the claimant. (*Coast Central Credit Union v. Superior Court* (1989) 209 Cal.App.3d 703, 711.)

“The function of the mechanic's lien is to secure reimbursement for services and materials actually contributed to a construction site, not to facilitate recovery of consequential damages or to provide a claimant with leverage for imposing the claimant’s view of who caused the breakdown in the contract.” (*Lambert, supra*, 228 Cal.App.3d at 389.) If a construction contract is rescinded, abandoned or breached, a lien claimant may include in the lien any amount due for labor, services, equipment or materials furnished, but the lien may not exceed the reasonable value of the labor, services, equipment or materials furnished by the claimant. (*Basic Modular Facilities v. Ehsanipour* (1999) 70 Cal.App.4th 1480, 1484-1485.) Contractual interest, delay damages and attorneys’ fees are not properly included in a mechanics’ lien. (*Carmel Development Co., Inc. v. Anderson* (2020) 48 Cal.App.5th 492, 521.)

When a lien has been filed but no action commenced, the property owner may file a petition to release the claim pursuant to Civ. Code §8480. However, “where a claimant has already brought an action to foreclose a lien, the owner may more easily file a motion in the pending action.” (*Lambert, supra*, 228 Cal.App.3d at 387.) Such a motion, often referred to as a *Lambert* motion, ensures that the owner has a speedy remedy against an improper lien. (*Ibid.*) On a *Lambert* motion, the lien claimant bears the burden of establishing the “probable validity” of the claim underlying the lien. (*Ibid.*; *Cal Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 845.) In the context of a motion to expunge a lis pendens, “probable validity” means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim.” (See CCP § 405.3; *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1012.)

The Polak Defendants argue that Plaintiff cannot establish the probable validity of its mechanic’s lien because it was not timely recorded. Mechanics lien laws, as remedial legislation, are to be liberally construed for protection of laborers and materialmen. (*Koudmani v. Ogle Enterprises, Inc.* (1996) 47 Cal.App.4th 1650, 1654; *see also* *Coast Central Credit Union v. Superior Court* (1989) 209 Cal.App.3d 703, 711 [Generally, doubts concerning the meaning of the mechanics’ lien statutes are resolved in favor of the claimant].) In order to enforce a mechanics lien, a direct contractor, such as Plaintiff, must first complete the contract work and then record the lien. (Civ. Code §§ 8018, 8412.) If notice of completion or cessation has not been recorded, as is the case here, the lien must be filed within 90 days after completion of the “work of improvement.” (Civ. Code § 8412(a).) For works of improvement not subject to acceptance by a public entity, completion is broadly defined as: (1) actual completion of the work of improvement; (2)

occupation or use by the owner accompanied by cessation of labor; (3) cessation of labor for a continuous period of 60 days; or (4) recordation of a notice of cessation after cessation of labor for a continuous period of 30 days. (Civ. Code § 8180(a).)

The Polak Defendants base their argument that Plaintiff completed work on the project in September 2023 on the lack of invoices referencing any work being performed after that date. They also provide the declaration of real estate agent Serena Leiterman who states that after visiting the property several times, it appeared to her that no work had been done on the property for months. (Declaration of Serena Leiterman, ¶¶ 4 and 7.)

Plaintiff submits evidence to demonstrate that work under the direct contract continued at the property past September 2023. Rahim Multani, Plaintiff's project manager for the project, states that a punch list was created in September and October 2023 to itemize what remained to be completed or changed to make the property sell. (Declaration of Multani, ¶ 4.) The punch list and corrective work included installing backsplash tile, repairing flooring, jacuzzi repairs, hot water and furnace issues, and an issue with the laundry room vent. (*Id.* at ¶¶ 5-9.) Mr. Multani states work continued through January 2024 and later, in September 2024, there was another inspection to see what remaining corrective work needed to be finished. (*Id.* at ¶ 7.) Mr. Multani states the punch-list was substantially complete in September 2024. (*Id.*) Mr. Multani then states that in November 2024, additional tasks required a licensed subcontractor to come to the property to assist. (*Id.* at ¶¶ 7-9.) Plaintiff also provides a declaration from that subcontractor, Michael Blank, who states that he was contacted by Mr. Multani in late 2024 to perform additional work on the project. (Declaration of Michael Blank, ¶ 5.) Mr. Blank provides an overview of the work that was performed in November 2024. (*Id.* at ¶ 6.)

The Polak Defendants argue that Plaintiff only offers "unsubstantiated words" and that the work performed was trivial in nature such that "power washing the Property did not revive the completion of work." This ignores Mr. Multani and Mr. Blank's declarations which outline much more work than just power washing. Mr. Multani's declaration is not unsubstantiated or insignificant. The Polak Defendants vaguely point to Plaintiff's document production, arguing that there are no photos showing pictures of work after September 2023 and again, no invoices for work performed thereafter. The mere absence of photographic evidence does not automatically render Mr. Multani's declaration void.

Notably, the Polak Defendants state the first time they toured the property was in December 2024 – after the work outlined in Mr. Multani's declaration was completed. (Declaration of Polak Defendants, ¶ 3.) Ms. Leiterman's belief that no work had been performed for months is likewise not persuasive evidence to support the request to expunge. The Polak Defendants also take issue with Mr. Blank's declaration because he cannot produce any pictures to support his testimony. But again, the mere lack of photographic evidence does not render the declaration invalid. Especially considering the lack of any persuasive evidence offered by The Polak Defendants in response.

Moreover, when compared to the prior statutory framework, Civ. Code § 8180 no longer mentions "substantial" performance, which suggests that even trivial work performed after a notice of completion may invalidate the notice of completion. (*Lewis v. Hopper* (1956) 140 Cal.App.2d 365, 366 [installation of four dispensers required by contract invalidated notice of completion].) Even if none of the post-September 2023 work was formally

invoiced, Mr. Multani states punch-list and corrective work continued to be performed on the project through 11/30/2024. (Declaration of Rahim Multani, ¶ 8.) This is sufficient to show a probable validity of mechanic's lien as to the issue of whether it was timely recorded on 12/17/2024. The motion to expunge cannot be granted. DENIED.

The Polak Defendants' alternative request for an undertaking also cannot be granted. The court may require a claimant to give an undertaking as a condition of maintaining a lis pendens. (CCP § 405.34.) However, given the evidentiary showing supporting the post-September 2023 work and the lack of any contrary evidence provided by the Polak Defendants beyond the real estate agent's belief that work had not been performed and the lack of pictures supporting Plaintiff's declaration, an undertaking is not just. DENIED.

The prevailing party on a motion to expunge is entitled to attorney's fees unless the other party acted with "substantial justification" or that an award would be unjust. (CCP § 405.38.) While Defendants are the prevailing party on this motion, they do not provide any support for their request for attorneys' fees. DENIED

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CASE #	CASE NAME	HEARING NAME
CVPS2603416	COUNTY OF RIVERSIDE VS THE HEIRS, DEVISEES, AND SUCCESSORS OF S.R. MCCAVRAN	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY COUNTY OF RIVERSIDE

Tentative Ruling: Granted.

No opposition filed.

Plaintiff County of Riverside ("County") having brought its motion for an order of prejudgment possession on for hearing, seeking possession of various permanent and temporary construction easements in the real property designated as County Project Parcel No. 0065-004B and 0065-014A ("Property") constituting portions of the property assigned Riverside County Assessor's Parcel Number 757-070-020, and which are more particularly described in the County's complaint on file in this action; and it appearing to the Court that:

- A. The County is entitled to take the Property by eminent domain;
- B. The County deposited in the Condemnation Deposits Fund with the Office of the State Treasurer the probable compensation to be awarded for the taking of the Property;
- C. The County is authorized by law to take prejudgment possession of the Property;
- D. There is an overriding need for the County to possess the Property before the issuance of final judgment;